



File No.: EXP202314832

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 13, 2023, a complaint was filed with entry registration number REGAGE23e00061290937 before the Spanish Agency for Data Protection against VILLA DE PINTO, S.L. with NIF B87253043. The reasons for the complaint are as follows:

The complainant, an employee at the establishment of the complained party, states that it has a video surveillance system that captures image and sound, and that recordings from this system were used for the disciplinary sanction of the complainant and the dismissal of another employee of the entity. The complainant states that they requested the removal of the cameras from the entity, without obtaining a satisfactory result.

They provide a photograph of a camera, a copy of the disciplinary sanction against the complainant, a copy of the document of disciplinary dismissal of another employee of the entity in which a fragment of the conversation held between this employee and a client is transcribed, a request for the removal of the cameras, and paragraphs of the company's response.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to VILLA DE PINTO, S.L. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 24/10/2023 as evidenced by the acknowledgment of receipt in the file.

On 16/11/2023, a response was received by this Agency indicating:

- The hotel has 12 internal circuit cameras and 6 cameras with remote connection: reception and entrance of the hotel, office, garage door and ramp, storage, hallways of the floors, kitchen, office, bar and room, and laundry.

It sends photos of the location of these cameras and the signage of the monitored areas.

2/8

- The closed circuit video surveillance of the hotel is only visible to the reception and management staff of the hotel, and is not exposed to the general public or unauthorized personnel. Access to the recordings can only be obtained through a password held by the designated person and management. As for the remote cameras, only the designated person and management have access.

- Upon starting the employment relationship, in the employment contract, in its fourth clause, the employee is informed of the existence of security cameras.

- The closed-circuit television system does not have sound, and the sound option on the remote access cameras has been disabled since their installation.

- Regarding the motivation for why the recordings from the company's video surveillance system were used to impose disciplinary sanctions on one employee and for the disciplinary dismissal of another employee, it is based on Article 20.3 of the Workers' Statute, in European jurisdiction and ordinary jurisdiction.

The recordings were used to verify the truthfulness of complaints from other employees and clients.

THIRD: On December 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint presented was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data

Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

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3/8

II

Preliminary Issues

In the present case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that VILLA DE PINTO, S.L. carries out, among other processes, the collection and use of the image of those individuals present within its premises, including its employees, through surveillance cameras.

VILLA DE PINTO, S.L. performs this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR:

“‘data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;”

III

Obligations Regarding Video Surveillance

The processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

- 1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of safeguarding the security of individuals and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.
- 2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.
- 3.- The obligation to inform the affected individuals as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled. In this regard, Article 22 of the LOPDGDD provides for a “layered information” system concerning video surveillance. The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. This information must be contained in a device placed in a sufficiently visible location and must be provided in advance. The information in the second layer must be available in a location easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.
- 4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.
- 5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

- 6.- The controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.
- 7.- The controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, assess them, and, where applicable, adopt appropriate security measures.
- 8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

In this case, the claimant states that there is a video surveillance system that captures image and sound, and that the recordings have been used for the disciplinary sanction of the claimant and the dismissal of another employee of the entity. This action is considered entirely excessive and contrary to the principle of proportionality.

The responding party, for its part, states that employees are informed, from the signing of the employment contract, of the existence of the video camera system, which does not record sound. According to Article 20 of the Workers' Statute "Direction and Control of Labor Activity," in its point 3: 3. The employer may adopt the measures it deems most appropriate for surveillance and control to verify the compliance by the worker of their obligations and duties, taking due consideration of their dignity and, where applicable, the actual capacity of workers with disabilities.

C/ Jorge Juan, 6

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5/8

VILLA DE PINTO, S.L became aware of the inappropriate behavior by the worker who was subsequently sanctioned and verified the truthfulness of the facts by reviewing the footage from the cameras.

Similarly, VILLA DE PINTO, S.L, in order to proceed with the dismissal of a worker, resorted to reviewing the cameras to verify the truthfulness of the complaints received from colleagues and clients.

IV

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes that:

1. When personal data relating to a data subject is obtained from the data subject, the data controller, at the time of obtaining this data, shall provide the data subject with all the information indicated below:
 - a) the identity and contact details of the controller and, where applicable, of their representative;
 - b) the contact details of the data protection officer, where applicable;
 - c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
 - d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
 - e) the recipients or categories of recipients of the personal data, where applicable;
 - f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.
2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:
 - a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
 - b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the

processing, as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, with information about that other purpose and any relevant additional information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In relation to this Article 13, VILLA DE PINTO, S.L. states that in the employment contract of its employees, in its fourth clause, the worker is informed of the existence of security cameras.

V

Right to privacy regarding the use of video surveillance and sound recording devices in the workplace. Article 89 of the LOPDGDD regulates the Right to privacy regarding the use of video surveillance and sound recording devices in the workplace:

1. Employers may process images obtained through camera or video systems for the exercise of the control functions of workers or public employees provided for, respectively, in Article 20.3 of the Workers' Statute and in public service legislation, provided that these functions are exercised within their legal framework and with the inherent limits thereof. Employers must inform in advance, and in an express manner,

C/ Jorge Juan, 6

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7/8

clear and concise, to the workers or public employees and, where applicable, to their representatives, regarding this measure.

In the event that a flagrant commission of an unlawful act by the workers or public employees has been detected, the duty to inform shall be deemed fulfilled when at least the device referred to in Article 22.4 of this organic law exists.

2. Under no circumstances shall the installation of sound recording systems or video surveillance in areas designated for the rest or recreation of workers or public employees, such as changing rooms, restrooms, cafeterias, and similar places, be permitted.

3. The use of systems similar to those mentioned in the previous sections for sound recording in the workplace shall only be permitted when the risks to the safety of facilities, property, and individuals arising from the activities carried out in the workplace are relevant, and always respecting the principles of proportionality, minimal intervention, and the guarantees provided in the previous sections. The deletion of sounds retained by these recording systems shall be carried out in accordance with the provisions of section 3 of Article 22 of this law.

The claimant asserts that the installed video surveillance system captures sound recordings, which is the reason for the worker's dismissal. In the annex submitted with the claim regarding this dismissal, a literal excerpt of the conversation held between the worker and the client who lodged the complaint with the company's management is reproduced.

VILLA DE PINTO, S.L. states that all video surveillance systems implemented in the establishment operate without sound recording, as the closed-circuit TV lacks sound, and the sound option on the

remote access cameras has been disabled since their installation; therefore, if it became aware of the content of the conversation between the client and the worker, it was due to the complaint filed by that regular client.

VII

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO FILE the present proceedings.

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8/8

SECOND: TO NOTIFY this resolution to VILLA DE PINTO, S.L. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of the LPACAP and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

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